



CHAPTER 29

An Act to amend the law relating to dentists.

[15th March, 1956]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled and by the authority of the same, as follows:

The General Dental Council

1.—(1) With a view to making the dental profession a self-governing profession, there shall be established, in accordance with the provisions of this Act, a body to be called the General Dental Council whose general concern it shall be to promote high standards of professional education and professional conduct among dentists and who shall in particular perform the functions assigned to them by this Act. Establishment of General Dental Council.

(2) Part I of the First Schedule to this Act shall have effect with respect to the General Dental Council.

Dissolution of Dental Board

2.—(1) The Dental Board of the United Kingdom (hereinafter referred to as "the Dental Board") shall be dissolved and all property, rights and liabilities of that Board shall by virtue of this Act be transferred to and vest in the General Dental Council: Dissolution of Dental Board and consequential provisions.

Provided that stamp duty shall not be chargeable under section twelve of the Finance Act, 1895 (which relates to duty on property vested by Act of Parliament) in respect of property vested by virtue of this subsection.

(2) The employees of the Dental Board, including the registrar and any assistant registrar, shall be transferred to the employment of the General Dental Council and the Privy Council may by statutory instrument make regulations for compensating, out of the funds of the General Dental Council, such of those employees as suffer loss of employment or loss or diminution of emoluments attributable to the provisions of this Act.

(3) The term of office of those who are members of the Dental Board at the passing of this Act shall not expire until the coming into force of subsection (1) of this section, but no casual vacancy in the membership of the Board occurring after the passing of this Act shall be filled.

Dental education and examinations

The Education Committee.

3.—(1) The General Dental Council shall set up an Education Committee and shall refer to the Committee for advice on all matters relating to dental education and examinations.

(2) Paragraph 11 of Part II of the First Schedule to this Act shall have effect as respects the Education Committee.

Appointment of visitors of dental schools.

4.—(1) The General Dental Council may appoint persons to visit, subject to any directions which the Privy Council may deem it expedient to give and to compliance with any conditions specified in those directions, places where instruction is given to dental students under the direction of any medical authority for the purposes of the Dentists Act, 1878, who grant diplomas in dental surgery or dentistry.

Such a medical authority as aforesaid is hereafter in this Act referred to as a "dental authority".

(2) It shall be the duty of visitors appointed under this section to report to the Council as to the sufficiency of the instruction given in the places which they visit and as to any other matters relating to the instruction which may be specified by the Council either generally or in any particular case; but no visitor shall interfere with the giving of any instruction.

(3) On the receipt of a report of a visitor under this section, the Council shall send a copy of the report to the dental authority in question, and on the receipt of the copy the dental authority may, within such period (not being less than one month) as the Council may have specified at the time they sent the copy of the report, make to the Council observations on the report or objections thereto.

(4) As soon as may be after the expiration of the period specified under the last foregoing subsection the Council shall send a copy of any such report as is therein referred to and of any observations thereon or objections thereto duly made together with the Council's comments on the report and on any such observations or objections to the Privy Council.

(5) The Council shall have power to remunerate members of the Council, as well as non-members, for acting as visitors under this section and the remuneration shall be at such rates as the Privy Council may approve.

5.—(1) The functions of the General Medical Council under sections twenty-two to twenty-seven of the Dentists Act, 1878 (which relate to courses of study and examinations) shall be transferred to the General Dental Council.

Transfer of functions relating to courses of study and examinations.

(2) The persons who may under section twenty-two of the said Act be present at examinations shall be members of or persons appointed by the General Dental Council and the General Dental Council shall have power to remunerate members of the Council, as well as non-members, for being present at the examinations mentioned in that section.

(3) In accordance with the foregoing provisions a reference to the General Dental Council shall be substituted for each reference to the General Medical Council in the said sections twenty-two to twenty-seven.

(4) Section twenty-eight of the said Act (which is not yet in force and which makes provision for the conduct of qualifying examinations by special boards instead of by the authorities who are medical authorities for the purposes of the said Act) shall not come into force.

Disciplinary provisions

6.—(1) The General Dental Council shall set up a committee for the preliminary consideration of disciplinary cases and shall set up a Disciplinary Committee.

Transfer of disciplinary duties to committees of the Council.

(2) The two committees shall be respectively constituted in accordance with paragraph 12 and paragraph 13 of Part II of the First Schedule to this Act.

(3) It shall be the function of the said committee for the preliminary consideration of disciplinary cases to decide whether a case of a person alleged to be liable to have his name erased under the second paragraph of section thirteen of the Dentists Act, 1878 (which relates to registered dentists convicted of crime or guilty of infamous or disgraceful conduct in a professional respect) ought to be referred to the Disciplinary Committee to be dealt with by them in accordance with the following provisions of this section.

Such cases are hereafter in this Act referred to as "disciplinary cases".

(4) The Disciplinary Committee shall hold an inquiry into any case referred to them by the other committee and the Disciplinary Committee, if satisfied as to the facts rendering the person in question liable to have his name erased, may determine that the name of that person shall be erased from the register.

(5) Where the Disciplinary Committee determine that a person's name shall be erased from the register, the registrar shall serve on him a notification of the determination of the Committee.

(6) On the establishment of the General Dental Council the following provisions of section thirteen of the Dentists Act, 1878, that is to say, the words from "The Board may" to the words "for further inquiry and report" (under which the functions conferred by this section on committees of the General Dental Council are conferred on the General Medical Council and the Dental Board) and the original paragraph for which those words were substituted by paragraph (b) of subsection (1) of section eight of the Dentists Act, 1921, shall cease to have effect.

Proceedings in
disciplinary
cases.

7.—(1) Subject to the provisions of this section, the General Dental Council shall make rules as to the procedure to be followed and rules of evidence to be observed in proceedings before the Disciplinary Committee under the last foregoing section and in particular—

- (a) for securing that notice that the proceedings are to be brought shall be given, at such time and in such manner as may be specified in the rules, to the person to whose registration the proceedings relate ;
- (b) for securing that any party to the proceedings shall, if he so requires, be entitled to be heard by the Committee ;
- (c) for enabling any party to the proceedings to be represented by counsel or solicitor, or (if the rules so provide and the party so elects) by a person of such other description as may be specified in the rules ;
- (d) for requiring proceedings before the Committee to be held in public except in so far as may be provided by the rules ;
- (e) for requiring, in cases where it is alleged that a registered dentist has been guilty of infamous or disgraceful conduct in a professional respect, that where the Committee judge that the allegation has not been proved they shall record a finding that the dentist is not guilty of such conduct in respect of the matters to which the allegation relates.

(2) Before making rules under this section the Council shall consult such bodies of persons representing dentists as appear to the Council requisite to be consulted.

(3) Rules under this section shall not come into force until approved by order of the Privy Council contained in a statutory instrument, and the Privy Council may approve such rules either as submitted to them or subject to such modifications as appear to them requisite :

Provided that where the Privy Council propose to approve any rules subject to modifications they shall notify to the General Dental Council the modifications they propose to make and consider any observations of the General Dental Council thereon.

8.—(1) For the purpose of advising the Disciplinary Committee on questions of law arising in proceedings before them in disciplinary cases there shall in all such proceedings be an assessor to the Committee who shall be a barrister, advocate or solicitor of not less than ten years standing. Assessor in disciplinary cases.

(2) The power of appointing assessors under this section shall be exercisable by the General Dental Council but if no assessor appointed by them is available to act at any particular proceedings the Disciplinary Committee may appoint an assessor under this section to act at those proceedings.

(3) The Lord Chancellor may by statutory instrument make rules as to the functions of assessors appointed under this section, and, in particular, rules under this subsection may contain such provisions for securing—

(a) that where an assessor advises the Committee on any question of law as to evidence, procedure or any other matters specified in the rules, he shall do so in the presence of every party, or person representing a party, to the proceedings who appears thereat or, if the advice is tendered after the Committee have begun to deliberate as to their findings, that every such party or person as aforesaid shall be informed what advice the assessor has tendered ;

(b) that every such party or person as aforesaid shall be informed if in any case the Committee do not accept the advice of the assessor on any such question as aforesaid,

and such incidental and supplementary provisions, as appear to the Lord Chancellor expedient.

(4) Subject to the provisions of this section, an assessor under this section may be appointed either generally or for any particular proceedings or class of proceedings, and shall hold and vacate office in accordance with the terms of the instrument under which he is appointed.

(5) Any remuneration paid by the General Dental Council to persons appointed to act as assessors shall be at such rates as the Privy Council may approve.

9.—(1) In an inquiry under this Act whether a person has been guilty of any infamous or disgraceful conduct in a professional respect, a finding of fact which is shown to have been made in any matrimonial proceedings in the United Kingdom or the Republic of Ireland, being proceedings in the High Court or the Court of Session or on appeal from a decision in such proceedings, shall be conclusive evidence of the fact found. Adoption in disciplinary cases of findings of fact in other proceedings.

(2) Where a dental authority in exercise of a power conferred by law strike the name of a person who is a registered dentist off a list of their graduates or licentiates in dental surgery or dentistry and notify to the General Dental Council the fact of the striking-off—

- (a) the registrar shall make a note of the fact in the register ; and
- (b) if the dental authority notify to the Council the findings of fact on which the decision to strike off the name was based, then for the purposes of any such inquiry as is mentioned in subsection (1) of this section the findings may, if the body holding the inquiry think fit, be treated as conclusive of the facts found.

Appeals in disciplinary cases.

10.—(1) At any time within twenty-eight days from the service of a notification that the Disciplinary Committee have determined under the foregoing provisions of this Act that the name of a person shall be erased from the register, that person may, in accordance with such rules as Her Majesty in Council may by Order provide for the purposes of this section, appeal to Her Majesty in Council ; and the Judicial Committee Act, 1833, shall apply in relation to the Disciplinary Committee as it applies to such courts as are mentioned in section three of that Act (which provides for the reference to the Judicial Committee of the Privy Council of appeals to Her Majesty in Council).

(2) The General Dental Council may appear as respondent on any such appeal ; and for the purpose of enabling directions to be given as to the costs of any such appeal the Council shall be deemed to be a party thereto, whether they appear on the hearing of the appeal or not.

(3) Where no appeal is brought against the determination or where such an appeal is brought but withdrawn or struck out for want of prosecution, the determination shall take effect on the expiration of the time for appealing, or, as the case may be, on the withdrawal or striking out of the appeal.

(4) Subject as aforesaid, where an appeal is brought against the determination the determination shall take effect if and when the appeal is dismissed and not otherwise.

(5) No appeal shall lie against such a determination as aforesaid under section nine of the Dentists Act, 1921 (which provides for an appeal to the High Court).

Restoration of name erased in a disciplinary case.

11.—(1) Where, either before or after the coming into force of this section, a person's name has been erased from the register in consequence of a decision in a disciplinary case,

the name of that person shall not again be entered in the register except by direction of the General Dental Council, but the Council may direct that the name of that person shall be restored to the register :

Provided that an application for the restoration of a name to the register shall not be made to the Council—

(a) within ten months from the date of erasure ; or

(b) within ten months from a previous application.

(2) The General Dental Council shall refer to the Disciplinary Committee for determination by them any application under the foregoing subsection made after the Disciplinary Committee has been set up.

12.—(1) With a view to preventing the holding of simultaneous inquiries—

Co-operation
with Dental
Board of
Republic of
Ireland.

(a) the General Dental Council shall report to the Dental Board of the Republic of Ireland every case in which it is proposed, in connection with the exercise of the disciplinary powers of the Council or of the Council's committees, to hold an inquiry into the conduct in the United Kingdom of a person registered in the dental register of the Republic of Ireland ;

(b) where the General Dental Council receives a report from the Dental Board of the Republic of Ireland as to a proposal to hold an inquiry in connection with the exercise of the disciplinary powers of that Board, the Council and the Council's committees shall have regard to the desirability of postponing inquiry by them into the matter to which the report relates until the inquiry by the Dental Board of the Republic of Ireland is completed.

(2) The General Dental Council shall report to the Dental Board of the Republic of Ireland every case in which disciplinary action resulting in erasure from the register is taken against a person registered in the dental register of the Republic of Ireland.

13.—(1) Where, either before or after the passing of this Act but before the date of the establishment of the General Dental Council, the Dental Board, after holding an inquiry in a disciplinary case, postponed their decision whether or not to report to the General Medical Council that the Dental Board were satisfied that the person concerned ought to have his name

Transitional
provisions.

erased from the register, and that decision is still postponed at that date, the power to make that decision shall on that date be transferred to the General Dental Council, so as to enable the General Dental Council, without reporting to the General Medical Council, to decide whether to have the name of that person erased from the register.

(2) At any time before the committee for the preliminary consideration of disciplinary cases and the Disciplinary Committee have been set up, but not more than twelve months after the establishment of the General Dental Council, the Council themselves may cause an inquiry to be made in a disciplinary case, and, whether or not the said committees have been set up or the said period of twelve months has elapsed, may carry through the inquiry and, if satisfied as to the facts rendering the person concerned so liable, may decide that his name shall be erased from the register.

(3) Where, before the date hereinafter mentioned, the power of making a decision whether or not a person's name ought to be erased has by virtue of subsection (1) or subsection (2) of this section become exercisable by the General Dental Council, that power, if still unexercised, shall on that date be transferred to the Disciplinary Committee; and, where after that date the General Dental Council in concluding an inquiry under this section find that a person is liable to have his name erased but postpone their decision, the power of making that decision shall forthwith be transferred to the Disciplinary Committee.

The date referred to is, if the Disciplinary Committee is set up within the period of twelve months from the establishment of the General Dental Council, the date on which that period expires and, if that Committee is not set up within that period, the date on which it is set up.

(4) Where the power of making a decision to erase a person's name is transferred by virtue of this section, any conditions subject to which the decision was postponed shall be observed by the body to whom the power is transferred.

(5) If under this section either the General Dental Council or the Disciplinary Committee decide that a person's name shall be erased from the register, the registrar shall serve on that person a notification of the decision, and section ten of this Act shall apply in relation to that decision as it applies in relation to a determination of the Disciplinary Committee.

The register

14.—(1) The General Dental Council may make regulations with respect to the form and keeping of the register and the making of entries and erasures therein and, in particular—

- (a) prescribing a fee to be charged on the entry of a name in the register or on the restoration of any entry to the register ;
- (b) prescribing a fee to be charged in respect of the retention in the register of the name of a person first registered after the commencement of the Dentists Act, 1921, in any year subsequent to the year in which that person was first registered ;
- (c) providing for the registration in and removal from the register of additional diplomas of prescribed kinds held by a registered dentist and prescribing a fee to be charged in respect of the registration ;
- (d) authorising the registrar, notwithstanding anything in this or any other Act, to refuse to make in or restore to the register any entry until a fee prescribed by regulations under this section has been paid ;
- (e) providing for the inclusion in the copy of the register published under subsection (3) of section eleven of the Dentists Act, 1878, of honours or distinctions accorded to a person in the register, subject to the inclusion in the copy of the register of an indication that those honours and distinctions do not form part of the register itself.

(2) Regulations under this section may authorise the registrar to erase from the register the name of a person who, after such notices and warnings as may be prescribed by the regulations, fails to pay a fee prescribed under paragraph (b) of the foregoing subsection and, where a person's name is so erased, that name may be restored to the register on that person's application.

(3) Regulations under this section prescribing fees may provide for the charging of different fees in different classes of cases.

(4) Regulations under this section prescribing fees or authorising the registrar to erase a person's name for non-payment of a fee shall not come into force until approved by order of the Privy Council ; and the Privy Council shall not approve any regulations under this section prescribing a fee of an amount exceeding five pounds unless in their opinion a fee of that amount is justified by changes in circumstances which have taken place since the passing of this Act.

(5) Subsection (6) of section eleven of the Dentists Act, 1878, and subsection (3) of section eight of the Dentists Act, 1921 (which confer power to make orders and regulations as to matters which can be dealt with by regulations under subsection (1) of this section) and, so far as it confers power to make regulations with respect to such matters, section seven of the said Act of 1921, shall cease to have effect but any orders or regulations made under those provisions which are in force immediately before the commencement of this section shall continue in force and may be varied or revoked by regulations under this section.

Miscellaneous
amendments
relating to
register.

15.—(1) The duty under the first paragraph of section thirteen of the Dentists Act, 1878, of causing incorrect or fraudulent entries in the register to be erased shall be transferred to the General Dental Council but where after the Disciplinary Committee has been set up a question arises whether an entry is fraudulent, it shall be referred to and determined by the Disciplinary Committee.

(2) Where, either before or after the coming into force of this subsection, a person's name has been erased under the said first paragraph on the ground that it was entered fraudulently, that name shall not again be entered in the register except on an application in that behalf to the General Dental Council, and on any such application the General Dental Council may, if they think fit, direct that the person shall not be registered, or shall not be registered until the expiration of such period as may be specified in the direction.

(3) The General Dental Council shall refer to the Disciplinary Committee for determination by them any application under the last foregoing subsection made after the Disciplinary Committee has been set up.

(4) Where a person's name has, either before or after the coming into force of this subsection, been erased from the register either under subsection (3) of section twelve of the Dentists Act, 1878 (which relates to the erasure of names of persons who have ceased to practise) or at his request, the name may be restored to the register on his application unless the original entry of his name was incorrectly or fraudulently made.

(5) No appeal shall lie under section nine of the Dentists Act, 1921, against any refusal or failure to register a person's name in the register, being a refusal or failure to comply with a request made after the coming into force of this subsection; and no appeal shall lie under that section against the removal after the coming into force of this subsection of a person's name from the register on grounds other than those mentioned in the second paragraph of section thirteen of the Dentists Act, 1878.

(6) The duty under subsection (3) of section eleven of the Dentists Act, 1878, of printing and publishing a copy of the register shall be transferred to the General Dental Council and no copy shall by virtue of the said subsection (3) be admissible as evidence of any honours or distinctions included in the copy by virtue of regulations under the last foregoing section.

(7) The last paragraph of section thirteen of the Dentists Act, 1878 (which requires the making of erasures from lists of licentiates corresponding to erasures from the register) and section fourteen of that Act (which makes provision for the restoration of names erased from the register corresponding to provisions in this section) shall cease to have effect.

16.—(1) The list of colonial dentists and the list of foreign dentists kept in the register in pursuance of paragraphs (b) and (c) of subsection (1) of section eleven of the Dentists Act, 1878, shall be called respectively “the Commonwealth list” and “the foreign list” and references in the Dentists Acts or any other Acts to colonial dentists or to registration as a colonial dentist shall, unless the context otherwise requires, be construed as references to dentists registered in the Commonwealth list and to registration as a Commonwealth dentist.

Registration in
Common-
wealth and
foreign lists.

(2) A person shall be entitled to be registered in the Commonwealth or foreign list if he shows to the satisfaction of the registrar that he is of good character and that he holds a Commonwealth diploma, or, as the case may be, a foreign diploma, and that he has satisfied the General Dental Council that he has the requisite knowledge and skill.

(3) For the purpose of satisfying themselves that a person has the requisite knowledge and skill, the Council shall, in addition to such other requirements as they may impose on him, require him to sit for examinations held by a dental authority, or a group of dental authorities, under arrangements made by the Council:

Provided that if the diploma held by that person is of a kind recognised for the time being by the Council as furnishing such guarantees of that person's possessing the requisite knowledge and skill as warrant dispensing with further inquiry, that person shall be taken to have satisfied the Council that he has the requisite knowledge and skill.

(4) The Council may make regulations as to the examinations to be held for the purposes of the last foregoing subsection and may include in the regulations provisions for withdrawing the right to sit for any such examinations from a person who has not first paid the fee prescribed by the regulations for sitting for the examinations or from a person who has previously failed to pass such examinations on such number of occasions as may be prescribed by the regulations.

Regulations under this subsection shall not come into force until approved by order of the Privy Council.

(5) Where the Council, with a view to permitting any person holding a Commonwealth or foreign diploma temporarily to practise dentistry in a hospital or other institution, give a direction that he be registered as respects practice in that hospital or institution for such a period as may be specified in the direction, that person shall, without showing that any requirements under the foregoing subsections are fulfilled in his case, be entitled to be registered in the Commonwealth or foreign list subject to the entry against his name of the restrictions specified in the direction:

Provided that registration under this subsection shall not make it lawful for a person to practise dentistry otherwise than subject to the said restrictions nor constitute him a registered dentist for the purposes of the First Schedule to this Act.

(6) Regulations under this Act relating to the register shall provide that persons registered under the last foregoing subsection shall appear in a separate sub-division of the list in question.

(7) The Council may direct that for the purposes of this section a particular person who has passed the examinations required to obtain a foreign diploma shall be treated as a person holding a foreign diploma.

(8) Sections eight, nine and ten of the Dentists Act, 1878, shall not have effect as respects registration after the coming into force of this section in the Commonwealth or foreign lists.

(9) In Article 4 of Part II of the Schedule to the Medical and Dentists Acts Amendment Act, 1927 (which entitles a person registered in the register to have himself registered in the dental register of the Republic of Ireland) the references to registration in the register shall not include references to registration in the Commonwealth or foreign list.

Persons in Commonwealth and foreign lists qualifying for registration in main list.

17.—(1) If the registrar learns that a person registered in the Commonwealth or foreign list is entitled to be registered as being a graduate or licentiate of a dental authority, he shall serve a notice on that person informing him that upon the expiration of a period specified in the notice (being a period of not less than three months from the issue of the notice) he proposes to strike that person's name out of the Commonwealth or, as the case may be, foreign list and also informing that person of his right to be registered as a graduate or licentiate.

(2) On the expiration of the said period, the registrar shall strike that person's name out of the Commonwealth or foreign list in accordance with the notice and shall register that person in the list of dentists registered as being such graduates or

licentiates as aforesaid, with the entries appearing against his name in the other list when the name was struck out.

(3) Regulations under this Act relating to the register shall not be made so as to require the payment of a fee for the making of an entry under this section.

Ancillary Dental Workers

18.—(1) Subject to the provisions of this and the next following section, the General Dental Council may by statutory instrument make regulations for the establishment of classes of ancillary dental workers to undertake dental work of kinds prescribed by the regulations, being dental work amounting to the practice of dentistry within the meaning of that expression as used in section one of the Dentists Act, 1921 (which prohibits the practice of dentistry by persons other than registered dentists).

Power of Council to create classes of ancillary dental workers.

(2) Regulations under this section may in particular make provision as respects any class so established—

- (a) for prescribing the qualifications for becoming a member of that class ;
- (b) for prescribing the dental work which a member of that class may undertake and the conditions, if any, under which he may undertake it ;
- (c) for the establishment of a roll or record for that class.

(3) The regulations shall be so framed as to secure that provisions in the regulations as to the arrangements to be made for training persons to become members of a class of ancillary dental workers do not materially impair the facilities for the training of dental students.

(4) Regulations under this section may authorise members of a class of ancillary dental workers established by the regulations to use a title indicating their membership, and a person who wilfully uses that title when he is not authorised under the regulations to use that title shall, on summary conviction, be liable to a fine not exceeding fifty pounds.

(5) If a member of a class of ancillary dental workers uses any title or description reasonably calculated to suggest that he possesses any status or qualification connected with dentistry other than a status or qualification which he in fact possesses and which is indicated by particulars entered in the roll or record of the class in respect of him, he shall be liable on summary conviction to a fine not exceeding fifty pounds :

Provided that where the regulations do not provide for a roll or record of the class in which particulars of status and qualifications may be entered, this subsection shall have effect as if the

words "and which is indicated by particulars entered in the roll or record of the class in respect of him" were omitted.

(6) If after regulations have been made under this section establishing a class of ancillary dental workers the General Dental Council propose to make further regulations varying the provisions relating to that class or abolishing that class, the further regulations shall be so framed as to secure that a person belonging to that class at the time when the further regulations are made is still permitted to do any dental work of a kind which he was previously permitted to do:

Provided that the Council need not comply with this subsection in framing the regulations if they are satisfied that reasonable steps have been taken to give to each of the persons belonging to the class in question particulars of their proposals with an opportunity of raising objections and none of those persons has maintained any objection to those proposals.

(7) Where a roll or record is established for a class of ancillary dental workers, regulations under this section may, in particular, provide for—

- (a) prescribing a fee to be charged when a person's name is entered in the roll or record,
- (b) prescribing a fee to be charged in respect of the retention of a person's name in the roll or record in any year subsequent to the year in which that person's name was first recorded, and
- (c) authorising the person in charge of the roll or record to erase from the roll or record the name of a person who, after such notices and warnings as may be prescribed by the regulations, fails to pay a fee prescribed under the last foregoing paragraph.

(8) Section one of the Dentists Act, 1921, shall not operate to prevent a person doing anything which he is permitted to do by regulations under this section, and the prohibition contained in the said section one on a person holding himself out as practising or being prepared to practise dentistry shall not apply to a person for the time being permitted by regulations under this section to practise dentistry of any particular kind.

(9) The General Dental Council shall not make any regulations under this section unless a draft of those regulations which has been approved by the Privy Council has been laid before Parliament and has been approved by a resolution of each House of Parliament, and the Privy Council shall not approve a draft of regulations prescribing—

- (a) a fee under paragraph (a) of subsection (7) of this section of an amount exceeding two pounds, or

(b) a fee under paragraph (b) of that subsection of an amount exceeding one pound, unless in their opinion a fee of that amount is justified by changes in circumstances which have taken place since the passing of this Act.

19.—(1) Regulations under the last foregoing section shall not permit an ancillary dental worker of any class to under-
take—

Restrictions on employment of ancillary dental workers.

- (a) the extraction of teeth other than deciduous teeth, or
- (b) except in the course of the provision of national and local authority health services, the filling of teeth or the extraction of deciduous teeth, or
- (c) the fitting, insertion or fixing of dentures or artificial teeth.

(2) Regulations under the last foregoing section shall be so framed as to secure that dental work amounting to the practice of dentistry carried out by an ancillary dental worker in the course of the provision of national and local authority health services is carried out under the direction of a registered dentist, and it shall be the duty of the General Dental Council to secure, either by provision in the said regulations or otherwise, that, so long as they think it advisable, such work is only carried out after the registered dentist has examined the patient and has indicated to the ancillary dental worker the course of treatment to be provided for the patient.

(3) Regulations under the last foregoing section shall be so framed as to secure that dental work amounting to the practice of dentistry carried out by an ancillary dental worker otherwise than in the course of providing national and local authority health services is carried out under the direct personal supervision of a registered dentist.

(4) For the purposes of this section the expression “practice of dentistry” has the meaning assigned to it by subsection (2) of section fourteen of the Dentists Act, 1921.

(5) References in this section and in any other provision of this Act to the provision of national and local authority health services shall be construed as references to the provision—

- (a) of hospital and specialist services under Part II of the National Health Service Act, 1946, Part II of the National Health Service (Scotland) Act, 1947, or Part III of the Health Services Act (Northern Ireland), 1948, or
- (b) of services at health centres under section twenty-one of the National Health Service Act, 1946, section fifteen of the National Health Service (Scotland) Act, 1947, or section seventeen of the Health Services Act (Northern Ireland), 1948, or

- (c) of services for mothers and young children under section twenty-two of the National Health Service Act, 1946, section twenty-two of the National Health Service (Scotland) Act, 1947, or section thirty-eight of the Health Services Act (Northern Ireland), 1948, or
- (d) of medical inspection and treatment of pupils under section forty-eight or seventy-eight of the Education Act, 1944, section four or five of the Education (Miscellaneous Provisions) Act, 1953, section fifty-one of the Education (Scotland) Act, 1946, or section forty-two or subsection (2) of section seventy-four of the Education Act (Northern Ireland), 1947.

Duty to make arrangements for experimental scheme.

20.—(1) If the Privy Council, after consulting the General Dental Council, are of opinion that, in order that the value to the community of the existence of a class of ancillary dental workers—

- (a) permitted to undertake the filling of teeth and the extraction of deciduous teeth, and
- (b) employed to do work of that kind in the course of the provision of national and local authority health services,

may be judged, the experiment provided for by the following subsections of this section should be carried out, they may require the General Dental Council to comply with the following subsections of this section; and those subsections shall not come into operation unless the Privy Council make that requirement.

(2) The General Dental Council shall make arrangements for encouraging and helping a number of persons to undergo training approved by the General Dental Council for the purposes of this section and arrangements for making available to such of those persons as, in the opinion of the General Dental Council, attain the necessary standards of proficiency, employment in the course of the provision of national and local authority health services.

(3) The General Dental Council shall ensure that the number of persons selected to undergo training under the arrangements is adequate having regard to the conclusions which will be drawn from the experiment under this section.

(4) The General Dental Council shall delegate their functions under subsections (2) and (3) of this section to a committee constituted in accordance with paragraph 14 of Part II of the First Schedule to this Act and that committee shall carry out those functions subject to the general control of the Council.

(5) The General Dental Council may by regulations contained in a statutory instrument prescribe the kinds of dental work which persons designated by the regulations, being persons to

whom employment is made available under the arrangements, may undertake in the course of the provision of national and local authority health services and the conditions subject to which they may undertake work of that kind and subsection (8) of section eighteen of this Act shall apply in relation to regulations under this subsection as it applies in relation to regulations under that section.

(6) The General Dental Council shall exercise the power conferred by the last foregoing subsection so as to secure that—

- (a) while the arrangements are in force, persons to whom employment is made available under the arrangements are not permitted to practise dentistry except in accordance with the arrangements; and
- (b) when the arrangements have been terminated, the persons who have in the opinion of the General Dental Council attained the necessary standards of proficiency under the arrangements shall, unless they infringe disciplinary provisions laid down by the regulations, or unless they become qualified to become members of such a class as is referred to in subsection (1) of this section, continue to have an opportunity to earn their livelihood by doing work of the kind for which they have been trained under the arrangements.

(7) The General Dental Council shall, not later than three years after the arrangements are set in train, make to the Privy Council an interim report on the progress of the experiment under this section, and the Privy Council shall lay the said report before Parliament.

(8) The Minister of Health and the Secretary of State shall have power with the consent of the Treasury to contribute out of moneys provided by Parliament towards defraying expenses incurred by the General Dental Council in connection with the making of arrangements under this section.

21.—(1) The Privy Council may, when, after consulting the General Dental Council, it appears to them that they are in a position to judge the results of the arrangements under the last foregoing section, require the General Dental Council to terminate the arrangements; and the General Dental Council shall have regard to the desirability of not admitting persons for training under the arrangements under such circumstances that they are unlikely to have completed their training before the arrangements are terminated.

Termination
of experimental
scheme.

(2) The General Dental Council on being required by the Privy Council to terminate the arrangements shall make to them a final report on the results of the experiment and the Privy Council shall lay the report before Parliament.

(3) After the termination of the arrangements the Privy Council, unless in the light of the said reports they conclude that the existence of such a class of ancillary dental workers as is referred to in subsection (1) of the last foregoing section would not be of value to the community, may require the General Dental Council to make regulations under section eighteen of this Act for the establishment of such a class as aforesaid; and the General Dental Council shall comply with the requirement.

This subsection shall be without prejudice to the power of the Council to make such regulations without any requirement.

Establishment
of Ancillary
Dental
Workers
Committee.

22.—(1) The General Dental Council shall set up an Ancillary Dental Workers Committee and shall refer to the Committee all matters connected with ancillary dental services.

(2) Paragraph 15 of Part II of the First Schedule to this Act shall have effect as respects the Ancillary Dental Workers Committee.

(3) Regulations under section eighteen of this Act may provide for entrusting to the Ancillary Dental Workers Committee the duty of enforcing standards of conduct among ancillary dental workers and for enabling that Committee to withdraw from a person not conforming to those standards the right to undertake dental work as an ancillary dental worker of all or any classes.

Restrictions on carrying on the business of dentistry

Restriction on
individuals.

23.—(1) Subject to the following provisions of this Act, an individual who is not a registered dentist or a registered medical practitioner shall not carry on the business of dentistry unless he was engaged in carrying on the business of dentistry on the twenty-first day of July, nineteen hundred and fifty-five.

(2) An individual who contravenes this section shall be liable on conviction on indictment to a fine not exceeding five hundred pounds, and on summary conviction to a fine not exceeding one hundred pounds.

Restrictions on
bodies
corporate.

24.—(1) The exception contained in subsection (1) of section five of the Dentists Act, 1921, from the prohibition in subsection (2) of that section on the carrying on of the business of dentistry by bodies corporate shall not extend to any body corporate other than one existing and carrying on the business of dentistry on the twenty-first day of July, nineteen hundred and fifty-five:

Provided that this subsection shall not affect a body corporate coming into existence on the reconstruction of a body corporate

existing and carrying on the business of dentistry on the said day, or on the amalgamation of two or more such bodies corporate, nor a society registered under the Industrial and Provident Societies Acts, 1893 to 1954, or the Industrial and Provident Societies Acts (Northern Ireland), 1893 to 1955.

(2) The operating staff of a body corporate to which the said exception contained in subsection (1) of section five of the Dentists Act, 1921, applies may include members of a class of ancillary dental workers established under this Act and, accordingly, in paragraph (b) of the said subsection (1) the reference to registered dentists shall in relation to operating staff include a reference to members of such a class of ancillary dental workers.

(3) Where after the coming into force of this section—

- (a) a body corporate is convicted of an offence under subsection (2) of section five of the Dentists Act, 1921, or
- (b) the name of a director of a body corporate is erased from the register under the second paragraph of section thirteen of the Dentists Act, 1878, or
- (c) a director of a body corporate is convicted under section one of the Dentists Act, 1921 (which prohibits the practice of dentistry by unregistered persons) or under the last foregoing section,

the Disciplinary Committee may direct that the exception referred to in subsection (1) of this section shall cease to extend to that body corporate as from such date as the Committee may specify and, subject to the following subsections, the said section five shall have effect accordingly:

Provided that the Committee shall not take a case into consideration while proceedings by way of appeal are pending which may result in this subsection being rendered inapplicable in that case nor during the period within which any such proceedings as aforesaid may be brought.

(4) Where—

- (a) an act or omission of a member of the operating staff of a body corporate constitutes an offence, or infamous or disgraceful conduct in a professional respect, for which that member is, under the second paragraph of section thirteen of the Dentists Act, 1878, struck off the register after the coming into force of this section, and
- (b) in the opinion of the Disciplinary Committee the act or omission was instigated or connived at by a director of the body corporate, or, if the act or omission was a continuing act or omission, a director of the body corporate had, or reasonably ought to have had, knowledge of the continuance thereof,

the Committee may direct that the exception referred to in subsection (1) of this section shall cease to extend to the body

corporate as from such date as the Committee may specify and, subject to the following subsections, the said section five shall have effect accordingly:

Provided that the Committee shall not take a case into consideration while proceedings by way of appeal are pending which may result in this subsection being rendered inapplicable in that case nor during the period in which any such proceedings as aforesaid may be brought.

(5) Where the Disciplinary Committee determine under either of the two last foregoing subsections that the said exception shall cease to extend to a body corporate, the Committee shall notify the body corporate of their determination and the body corporate may, within twenty-eight days of the notification, in accordance with such rules as Her Majesty in Council may by Order provide for the purposes of this section, appeal to Her Majesty in Council—

(a) in the case of a determination under subsection (3) of this section on the ground that, notwithstanding the conviction or, as the case may be, the erasure of the name, the Disciplinary Committee's decision was unjustified, and

(b) in the case of a determination under subsection (4) of this section, on the ground that the opinion of the Disciplinary Committee as to the matters referred to in paragraph (b) of the said subsection (4) was incorrect or that, although that opinion was correct, the Committee's decision was unjustified.

(6) The provisions of subsections (1) to (4) of section ten of this Act shall apply for the purposes of the last foregoing subsection as they apply in relation to an appeal under that section.

(7) Section seven of the Dentists Act, 1921, so far as it relates to the making of regulations for the purposes of subsections (3) and (4) of section five of that Act shall cease to have effect, but without prejudice to such regulations in force at the commencement of this section; and any such regulations may be varied or revoked by regulations made by the General Dental Council.

(8) The powers conferred by this section on the Disciplinary Committee shall, before the setting up of that Committee, be exercisable by the General Dental Council.

Exemptions.

25.—(1) Where a registered dentist or a registered medical practitioner who died before the coming into force of section twenty-three of this Act was at his death carrying on a business or practice constituting the business of dentistry, neither that section nor section five of the Dentists Act, 1921, shall operate to prevent—

(a) his personal representatives or any of his children or trustees on behalf of any of his children from carrying

on the business of dentistry in continuance of that business or practice during the three years beginning with the coming into force of the said section twenty-three, or

- (b) his widow or trustees on behalf of his widow from carrying on the business of dentistry in continuance of that business or practice at any time during her life.

(2) Where a registered dentist, or registered medical practitioner, who dies after the coming into force of section twenty-three of this Act was at his death carrying on a business or practice constituting the business of dentistry, neither that section nor section five of the Dentists Act, 1921, shall operate to prevent his personal representatives or his widow or any of his children or trustees on behalf of his widow or any of his children from carrying on the business of dentistry in continuance of that business or practice during the three years beginning with his death.

(3) Where a registered dentist, or registered medical practitioner, becomes bankrupt at a time when he is carrying on a business or practice constituting the business of dentistry, neither section twenty-three of this Act nor section five of the Dentists Act, 1921, shall operate to prevent his trustee in bankruptcy or, in Northern Ireland, the official assignee, from carrying on the business of dentistry in continuance of that business or practice during the three years beginning with the bankruptcy or, if he became bankrupt before the date of the coming into force of section twenty-three of this Act, during the three years beginning with that date.

(4) Where a body corporate is carrying on the business of dentistry by virtue of this section, nothing in subsection (3) of section five of the Dentists Act, 1921, shall require that body to transmit any statement to the registrar.

26.—(1) For the purposes of the three last foregoing sections and of the said section five of the Dentists Act, 1921, a person shall, subject to the provisions of this section, be treated as carrying on the business of dentistry if, and only if, he or a partnership of which he is a member receives payments for services rendered in the course of the practice of dentistry by him or by a partner of his or by an employee of his or of all or any of the partners.

Meaning of
"business of
dentistry".

For the purposes of this subsection the expression "practice of dentistry" has the meaning assigned to it by subsection (2) of section fourteen of the Dentists Act, 1921.

(2) Notwithstanding the foregoing subsection, the receipt of payments—

- (a) by an authority providing national and local authority health services, or

- (b) by a person providing dental treatment for his employees without a view to profit, or
- (c) by a person providing dental treatment without a view to profit under conditions approved by the Minister of Health or the Secretary of State or the Ministry of Health and Local Government for Northern Ireland, or the receipt of payments in respect of any such operation as is mentioned in paragraph (b) of subsection (3) of section one of the Dentists Act, 1921 (which relates to emergency extractions by chemists) shall not constitute the carrying on of the business of dentistry for the said purposes.

(3) Subsection (5) of the said section five of the Dentists Act, 1921 (which contains an exemption for institutions approved by the Minister) shall cease to have effect.

Miscellaneous

Use by
unregistered
persons of
titles and
descriptions
connected
with dentistry.

27.—(1) No person shall take or use the title of dentist, dental surgeon or dental practitioner, either alone or in combination with any other word, unless he is a registered dentist or a registered medical practitioner, and no person shall take or use any title or description implying that he is a registered dentist unless he is a registered dentist.

(2) A person who acts in contravention of the provisions of this section shall be liable on summary conviction to a fine not exceeding one hundred pounds, or on conviction on indictment to a fine not exceeding five hundred pounds.

Prohibition on
practice of
dentistry by
laymen.

28.—(1) In the definition of the practice of dentistry in subsection (2) of section fourteen of the Dentists Act, 1921 (which applies for the purposes of the prohibition on the practice of dentistry by laymen imposed by section one of that Act) for the words "fitting, insertion or fixing of artificial teeth" there shall be substituted the words "fitting, insertion or fixing of dentures, artificial teeth or other dental appliances".

(2) An offence under the said section one committed after the coming into force of this section shall be punishable on conviction on indictment by a fine not exceeding five hundred pounds.

(3) The last foregoing subsection shall be without prejudice to the power to institute summary proceedings for an offence under the said section one and such proceedings for an offence committed after the coming into force of this section, may, notwithstanding anything in section one hundred and four of the Magistrates' Courts Act, 1952, or any corresponding enactment forming part of the law of Scotland or Northern Ireland, be instituted at any time within one year from the commission of the offence.

Conditions
under which
students may
undertake
dental work.

29.—(1) Subject to subsection (2) of this section a person who, after the coming into force of this section, undertakes dental work in the course of his studies shall be treated for the purposes of the Dentists Acts, 1878 to 1927, and this Act, as

practising dentistry if he would have been treated for those purposes as practising dentistry if he had undertaken that work in the course of earning his livelihood.

(2) Dental work shall not be treated for the purposes of the said Acts as amounting to the practice of dentistry if it is undertaken—

- (a) by a person recognised by a dental authority as a student of dental surgery or of dentistry, or by a person recognised by a medical authority as a medical student, as part of a course of instruction approved by that authority for students of that kind or as part of an examination so approved, or
- (b) by any person as part of a course of instruction which he is following in order to qualify for membership of a class of ancillary dental workers or as part of examinations which must be passed in order to qualify for membership of a class of ancillary dental workers.

(3) No dental work which a person undertook before the coming into force of subsection (1) of this section in the course of his studies shall be treated for the purposes of the said Acts as amounting to the practice of dentistry.

(4) In this section the expression "medical authority" has the meaning assigned to it by section two of the Dentists Act, 1878.

30.—(1) Notwithstanding anything in paragraph (b) of section four of the Dentists Act, 1921 (which makes it an offence to use professional titles and descriptions to which the user is not entitled or which are not recorded in the register) a registered dentist shall, by virtue of being registered, be entitled to use the description of "dental surgeon".

Use by dentists of titles and descriptions.

(2) If the General Dental Council are of opinion that any special branch of dentistry has become so distinctive that it would be for the convenience of the public or of the dental profession that registered dentists qualified to practise, or practising, in that branch of dentistry should use a distinctive title, they may by regulations prescribe appropriate titles and the conditions under which they may be used; and the use of a prescribed title under the prescribed conditions shall not constitute a contravention of the said paragraph (b).

(3) A person contravening the said paragraph (b) shall be liable on summary conviction to a fine not exceeding fifty pounds.

(4) Where after the coming into force of this subsection a person's name is entered in the Commonwealth list or the foreign list, or an additional diploma granted in a country overseas is entered against a person's name in any part of the register, the registrar shall enter the diploma by virtue of which that person is registered or, as the case may be, the additional diploma in such abbreviated form as the registrar after consultation with the President of the General Dental Council may select as being

convenient but not capable of being mistaken for the abbreviated form of any other diploma.

(5) Where in accordance with the last foregoing subsection the abbreviated form of a diploma is recorded in the register against a person's name, that person shall not take or use, or affix to or use in connection with his premises, any other abbreviation of that diploma and if he contravenes this subsection he shall be liable on summary conviction to a fine not exceeding fifty pounds.

Minor
amendments.

31.—(1) The functions of the Dental Board under sections one and two of the Dentists Act, 1921 (which include the authorisation of minor dental work by laymen and the appointment of a registrar) shall be transferred to and executed by the General Dental Council.

(2) Any reference in the Dentists Acts, 1878 to 1927, to registration under or in pursuance of the Dentists Act, 1878, shall be construed as a reference to any kind of registration in the register notwithstanding that some provisions relating to registration are contained in some Act other than the Dentists Act, 1878.

(3) Section forty of the Dentists Act, 1878, in so far as it authorises the recovery of penalties in Scotland before two justices shall cease to have effect.

Supplemental

Service of
notices by
registrar.

32. A notice required or authorised by this Act to be served on a registered dentist by the registrar may be served by post in a registered letter addressed to the dentist at his address in the register, or at his last known address if that address differs from his address in the register and it appears to the registrar that such service will be more effective.

Evidence in
proceedings
before Council
and
Disciplinary
Committee.

33.—(1) For the purpose of any proceedings under this Act before the General Dental Council or the Disciplinary Committee relating to the removal of a person's name from the register, or its restoration to the register, or relating to the withdrawal from a body corporate of the right to carry on the business of dentistry, the Council or Committee, as the case may be, may administer oaths, and any party to the proceedings may sue out writs of subpoena ad testificandum and duces tecum, but no person shall be compelled under any such writ to produce any document which he could not be compelled to produce on the trial of an action.

(2) Section forty-nine of the Supreme Court of Judicature (Consolidation) Act, 1925 (which provides a special procedure for the issue of such writs so as to be in force throughout the United Kingdom) shall apply in relation to any such proceedings as aforesaid as it applies in relation to causes or matters in the High Court.

34.—(1) The Statutory Instruments Act, 1946, shall apply to a statutory instrument containing regulations made by the General Dental Council under this Act in like manner as if the regulations had been made by a Minister of the Crown. Rules, regulations, orders and other instruments.

(2) Prima facie evidence of any document issued by the General Dental Council or the Dental Board may be given in all legal proceedings by the production of a copy or extract purporting to be certified to be a true copy or extract by the registrar or some other officer of the General Dental Council authorised to give a certificate for the purposes of this subsection.

(3) No proof shall be required of the handwriting or official position or authority of any person certifying in pursuance of this section to the truth of any copy of or extract from any regulations or other document.

35.—(1) In this Act, unless the context otherwise requires— Interpretation.

“Commonwealth or foreign diploma” means a diploma granted in a country overseas and recognised for the time being by the General Dental Council for the purposes of this Act, and the diploma shall be a Commonwealth or a foreign diploma according as the country in which it is granted is or is not within the Commonwealth;

“dental authority” has the meaning assigned to it by subsection (1) of section four of this Act;

“diploma” means any diploma, degree, fellowship, membership, licence, authority to practise, letters, testimonial, certificate or other status or document granted by any university, corporation, college or other body or by any department of, or persons acting under the authority of, the government of any country or place within or without Her Majesty’s dominions;

“disciplinary case” has the meaning assigned to it by subsection (3) of section six of this Act;

“party” in relation to proceedings before the Disciplinary Committee or the General Dental Council means—

(a) in a case relating to the removal of a person’s name from the register, or its restoration to the register, that person, and

(b) in a case relating to the withdrawal from a body corporate of a right to carry on the business of dentistry, that body corporate and any director of that body corporate, and

(c) in any case, any person on whose complaint the proceedings are brought or any solicitor appointed by the General Dental Council to represent them at the proceedings ;

“ register ” means the dentists register and “ registrar ” means the registrar of that register ;

“ registered dentist ” means a person registered in the register.

(2) References in this Act to the provision of national and local authority health services shall be construed in accordance with the provisions of section nineteen of this Act.

(3) The powers conferred by this Act on the Privy Council (other than the power of hearing appeals against determinations to erase names from the register or determinations to withdraw from bodies corporate the right to carry on the business of dentistry) shall be exercisable by any two or more members of the Privy Council.

(4) Any reference in this Act to any provision of any other Act shall, unless the context otherwise requires, be construed as including a reference to that provision as amended by any other Act, including this Act and any Act of the Parliament of Northern Ireland.

Application
to Northern
Ireland.

36.—(1) It is hereby declared that this Act extends to Northern Ireland and for the purposes of section six of the Government of Ireland Act, 1920 (which precludes the Parliament of Northern Ireland from amending Acts of the Parliament of the United Kingdom passed after the day appointed under that Act) this Act shall be treated as passed before that day.

(2) In the application of this Act to Northern Ireland references to summary conviction shall be construed as references to summary conviction under the enactments (including enactments of the Parliament of Northern Ireland) for the time being in force in Northern Ireland relating to summary jurisdiction.

Short title,
citation,
repeals and
commence-
ment.

37.—(1) This Act may be cited as the Dentists Act, 1956, and the Dentists Acts, 1878 to 1927, and this Act may be cited together as the Dentists Acts, 1878 to 1956.

(2) The Acts set out in the Second Schedule to this Act shall be repealed to the extent specified in the third column of that Schedule.

(3) This Act shall come into force on such day as Her Majesty may by Order in Council appoint and, subject to any express provision in this Act, different days may be appointed for different provisions.

SCHEDULES

FIRST SCHEDULE

Sections 1, 3, 6,
16, 20, 22.

THE GENERAL DENTAL COUNCIL AND ITS COMMITTEES

PART I

CONSTITUTION, ETC., OF COUNCIL

1. The General Dental Council shall be a body corporate, shall have a common seal, and shall have power to acquire and hold land without licence in mortmain.

2.—(1) The General Dental Council shall consist of eighteen members together with the members to be nominated under this Part of this Schedule by the authorities who are for the time being dental authorities.

(2) Of the members of the Council—

(a) eleven shall be elected by registered dentists from among themselves ;

(b) three, who shall be registered dentists, shall be nominated by Her Majesty on the advice of Her Privy Council ;

(c) three, who shall not be registered dentists, and of whom two shall be chosen for England and Wales and one for Scotland, shall be nominated by Her Majesty on the advice of Her Privy Council ;

(d) one, who shall not be a registered dentist, shall be nominated by the Governor of Northern Ireland ;

and of the remaining members, all of whom shall be registered dentists, the University of London (so long as it is a dental authority) shall nominate two, and every other authority which is for the time being a dental authority shall nominate one.

(3) In addition there shall be six persons nominated by the General Medical Council from among members of that Council who shall act and vote as members of the General Dental Council in connection with dental education and examinations, but who, save as otherwise expressly provided by this sub-paragraph or any other provision of this Act, shall not be treated as members of the General Dental Council for the purposes of this Act:

Provided that no proceedings of the General Dental Council shall be invalid by reason of any member nominated by the General Medical Council having acted or voted in a manner not permitted by this sub-paragraph.

3.—(1) Elections to fill all the elected members' seats shall be held before the establishment of the General Dental Council so as to enable the persons elected to assume membership on its establishment, and at the expiration of five years from such date in the year nineteen hundred and fifty-six as the Council may fix, and at the expiration of each succeeding period of five years, all the persons who are then elected members of the Council shall retire together ; and elections shall be held accordingly before the end of each of the said periods.

1ST SCH.
—cont.

(2) An election shall be held to fill a casual vacancy among the elected members if, and only if, the vacancy occurs more than twelve months before the beginning of the next five-year period.

(3) Of the eleven elected members—

(a) seven shall be elected by the dentists whose addresses in the register are in England, the Isle of Man or the Channel Islands ;

(b) one shall be elected by the dentists whose addresses in the register are in Wales ;

(c) two shall be elected by the dentists whose addresses in the register are in Scotland ;

(d) one shall be elected by the dentists whose addresses in the register are in Ireland.

(4) Elections under this paragraph shall be conducted in accordance with rules which shall include provision—

(a) for nominations being made by registered dentists ;

(b) for the use of voting papers and for voting by post.

(5) As respects the elections before the establishment of the General Dental Council the rules shall be rules made by the Dental Board and as respects subsequent elections the rules shall be rules made by the Council.

(6) This paragraph shall apply in relation to Monmouthshire as if it were part of Wales and not part of England and references to England and Wales shall be construed accordingly.

4.—(1) Nominations to fill nominated members' seats shall be made before the establishment of the General Dental Council in time to enable the persons nominated to assume membership on its establishment, and at the expiration of three years from such date in the year nineteen hundred and fifty-six as the Council may fix, and at the expiration of each succeeding period of five years, all the persons who are then nominated members of the Council shall retire together ; and nominations shall be made accordingly before the end of the three-year period and of each five-year period.

(2) A nomination shall be made to fill a casual vacancy among the nominated members whenever it occurs.

(3) In this paragraph references to nominated members include references to members nominated by the General Medical Council for the limited purposes set out in sub-paragraph (3) of paragraph 2 of this Part of this Schedule.

(4) Where in the course of the said period of three years or one of the said periods of five years an authority becomes for the first time a dental authority, the right of that authority to nominate a member of the General Dental Council shall be postponed until the end of that period.

5.—(1) The General Dental Council shall elect a registered dentist as President from among the members of the Council.

(2) The President shall hold office until he next retires from membership of the Council.

6. A person shall not be disqualified for being elected or nominated as a member of the Council or for being elected as President of the Council by reason of having already served as a member or, as the case may be, as President.

7. No person shall be disqualified for being elected to, or sitting or voting as a member of, the House of Commons by reason of being a member of the General Dental Council or of one of the Council's committees.

8.—(1) Subject to the following provisions of this Part of this Schedule, the Council shall have power to do any thing which in their opinion is calculated to facilitate the proper discharge of their functions.

(2) The Council shall, in particular, have power to pay to its members, including the members nominated by the General Medical Council, fees for attendance at meetings of the Council or its committees and travelling and subsistence allowances while attending such meetings or while on any other business of the Council but, save as expressly provided by this paragraph or any other provision of this Act, the Council shall not have power to pay to its members any remuneration for doing the business of the Council and shall not have power to pay the said fees for attendance to a member of the Council who is also a member of the House of Commons or a member of the Senate or House of Commons of Northern Ireland.

(3) The powers of the Council and of any of the Council's committees may be exercised notwithstanding any vacancy, and no proceedings of the Council or of any of the Council's committees shall be invalidated by any defect in the appointment of a member.

9.—(1) The Council may, after paying their expenses, including the payments authorised under this Schedule to be made to their members and the salaries or remuneration of their officers, allocate any money received by them whether by way of fees or otherwise to purposes connected with dental education and research or any other public purposes connected with the profession of dentistry in such manner as they may think fit.

(2) The Council shall keep accounts of all sums received or paid by them under the Dentists Acts, 1878 to 1927, and this Act and the accounts shall be audited in manner prescribed by regulations made by the Privy Council and shall be published annually and laid before Parliament.

10.—(1) The Council may make rules for regulating the proceedings (including quorum) of the Council and for delegating, subject to the provisions of this Act, to committees, including the committees referred to in Part II of this Schedule, functions of the Council and, subject as aforesaid, for appointing the members and regulating the proceedings (including quorum) of any committees, including the committees referred to in Part II of this Schedule and any sub-committees.

(2) The power conferred by the foregoing sub-paragraph shall include power to make rules as to the procedure to be followed and rules of evidence to be observed in proceedings before the Disciplinary

1ST SCH.
—cont.

Committee (other than proceedings in disciplinary cases) but rules under this sub-paragraph shall not come into force until approved by order of the Privy Council contained in a statutory instrument:

Provided that before making any rules under this sub-paragraph the Council shall consult with such bodies of persons representing dentists as appear to the Council requisite to be consulted.

(3) Nothing in this paragraph shall authorise the Council to delegate any power of making rules or regulations under any other provision of this Act or the power of appointing assessors in inquiries in disciplinary cases.

PART II

COMMITTEES OF THE COUNCIL

The Education Committee

11.—(1) The Education Committee shall consist of the President and eight other members of the Council (who shall all be registered dentists) and those persons who are only members of the Council for the limited purposes set out in sub-paragraph (3) of paragraph 2 of Part I of this Schedule.

(2) The Committee shall appoint a registered dentist to be chairman from among the members of the Committee.

The committee for the preliminary consideration of disciplinary cases

12. The committee for the preliminary consideration of disciplinary cases shall consist of the President and five other members of the Council of whom one shall be a person who is not a registered dentist:

Provided that the President may appoint for the consideration of any particular case one or two members of the Council to be additional members of the Committee notwithstanding that the membership of the Committee is thereby raised to seven or eight.

The Disciplinary Committee

13.—(1) The Disciplinary Committee shall consist of the President and ten other members of the Council of whom at least four shall be elected members of the Council and at least two shall be neither such elected members nor registered dentists.

(2) A member of the said committee for the preliminary consideration of disciplinary cases other than the President of the Council shall not at the same time be a member of the Disciplinary Committee.

(3) At any meeting of the Disciplinary Committee the President of the Council or, in his absence, such member of the Committee as the Committee may choose, shall be chairman.

(4) All acts of the Disciplinary Committee shall be decided by a majority of the members present at any meeting.

(5) The quorum for a meeting of the Disciplinary Committee shall be five, of whom at least one shall be an elected member of the Council.

*The committee entrusted with carrying out the experimental scheme
for training ancillary dental workers*

1ST SCH.
—cont.

14.—(1) The committee entrusted with carrying out the experimental scheme for training ancillary dental workers shall consist of the President and eight other members of the Council and four persons who need not be members of the Council.

(2) Not less than three of the said eight members of the committee shall be members of the Council appointed by the dental authorities and not less than two of the said eight members of the committee shall be members of the Council elected by registered dentists.

(3) The four members of the committee who need not be members of the Council shall be appointed by the Privy Council, and of those four members of the committee two shall be registered dentists who are employed in the course of the provision of national and local authority health services and one shall be a person who is not a registered dentist.

(4) The committee shall appoint a registered dentist to be chairman from among the members of the committee.

The Ancillary Dental Workers Committee

15.—(1) The Ancillary Dental Workers Committee shall consist of the President and eight other members of the Council and six persons who are not members of the Council.

(2) Not more than six members of the Committee (excluding the President) shall be both members of the Council and registered dentists.

(3) Three of the six members of the Committee who are not members of the Council shall be appointed by the Minister of Health, the Secretary of State and the Minister of Health and Local Government for Northern Ireland acting jointly and two of the said three so appointed shall be registered dentists who are or have been employed in the course of the provision of national and local authority health services.

The said three members appointed by the said Ministers shall be appointed in the first instance to take office at the same time and they and their successors shall retire together at the end of successive three year periods, and an appointment made in the course of one of the said periods to fill a casual vacancy shall be for the remainder of that period.

(4) The other three of the six members of the Committee who are not members of the Council shall not be appointed until regulations have been made under this Act establishing a class of ancillary dental workers and shall then, in the first instance, be appointed by the Council from among members of the class so established.

(5) The said three persons appointed by the Council in the first instance shall retire on such date as the Council may fix and the persons to fill their vacancies shall be elected by members of all the classes of ancillary dental workers established by regulations under this Act in such manner and at such intervals as may be provided by rules made by the Council.

1ST SCH.
—cont.

(6) The Council shall pay to members of the Committee who are not members of the Council allowances and fees at the same rates as in the case of those who are members of the Council and shall, as respects any member who is also a member of the House of Commons or of the Senate or House of Commons of Northern Ireland, follow the same rule as to not paying him any fees for attendance.

(7) The chairman of the Committee shall be chosen by the Committee from among the members of the Committee who are registered dentists.

(8) The Committee may appoint a sub-committee to deal with disciplinary questions connected with members of a class of ancillary dental workers.

The said sub-committee shall consist of not more than nine members.

Section 37.

SECOND SCHEDULE
ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
41 & 42 Vict. c. 33.	The Dentists Act, 1878	In section two the definition of "Branch Council". In section six, in paragraph (b) the words "as hereinafter mentioned". In section seven the words "and pays the registration fee". Sections eight to ten. In section eleven, subsection (6) but without affecting orders already made under that subsection. In section thirteen, the whole except for the first two paragraphs and the proviso originally enacted. Section fourteen. Section sixteen. In section twenty-two the words "or by any branch council". Section twenty-eight. In section thirty-eight the words "by the General Council or". In section thirty-nine the words from "and shall be deemed" to the end of the section. In section forty the words from the beginning to the words immediately preceding "all penalties" and the words "or two justices."
49 & 50 Vict. c. 48.	The Medical Act, 1886	In section twenty-three the words "or the Dentists Act, 1878". In section twenty-six the words from "It shall be lawful" to the words "to be in force".

2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
11 & 12 Geo. 5. c. 21.	The Dentists Act, 1921	In section two, subsections (1), (2) and (3). In section five, subsection (5). In section six, subsections (1) and (3), and in subsection (4) the words from "and section twenty-three" to "under the principal Act". Sections seven and eight but without prejudice to regulations already made under those sections. Section ten. In section eleven, in subsection (2) the words "and on payment of the registration fee in respect of each person to be registered" and the words "in accordance with regulations made by the Board". Section thirteen. In section fifteen, subsection (1). Section sixteen. In section seventeen, in subsection (1) the words from "and the provision" to the end of the subsection. The First Schedule.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Judicial Committee Act, 1833	3 & 4 Will. 4. c. 41.
Dentists Act, 1878	41 & 42 Vict. c. 33.
Finance Act, 1895	58 & 59 Vict. c. 16.
Government of Ireland Act, 1920	10 & 11 Geo. 5. c. 67.
Dentists Act, 1921	11 & 12 Geo. 5. c. 21.
Supreme Court of Judicature (Consolidation) Act, 1925	15 & 16 Geo. 5. c. 49.
Medical and Dentists Acts Amendment Act, 1927	17 & 18 Geo. 5. c. 39.
Education Act, 1944	7 & 8 Geo. 6. c. 31.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Education (Scotland) Act, 1946	9 & 10 Geo. 6. c. 72.
National Health Service Act, 1946	9 & 10 Geo. 6. c. 81.
National Health Service (Scotland) Act, 1947	10 & 11 Geo. 6. c. 27.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6 & 1 Eliz. 2. c. 55.
Education (Miscellaneous Provisions) Act, 1953	1 & 2 Eliz. 2. c. 33.

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